



## CHAPTER xliv.

An Act to authorise the mayor aldermen and citizens of the city of Nottingham and county of the same city to construct tramways and street improvements and for other purposes. A.D. 1910.  
[26th July 1910.]

**W**HEREAS the mayor aldermen and citizens of the city of Nottingham and county of the same city (in this Act referred to as "the Corporation") are the owners of and work an extensive system of tramways within the city and it is expedient to empower the Corporation to construct and work the additional tramways described in this Act:

And whereas it is expedient that the Corporation should be empowered to make and maintain the street improvements referred to in this Act:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purposes herein-after mentioned and such estimates are as follows:—

|                                                                                                                              | £     |
|------------------------------------------------------------------------------------------------------------------------------|-------|
| (A) For and in connexion with the construction<br>of the tramways authorised by this Act -                                   | 24000 |
| (B) For the electrical equipment of the tramways<br>authorised by this Act and for the provision<br>of rolling stock - - - - | 9250  |
| [Price 1s. 9d.] <span style="float: right;">A</span>                                                                         | 1     |



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|                                                                                                                       |       |
|-----------------------------------------------------------------------------------------------------------------------|-------|
|                                                                                                                       | £     |
| (c) For and in connexion with the purchase of<br>land for the street improvements authorised<br>by this Act - - - - - | 28638 |
| (d) For and in connexion with the construction<br>of the said street improvements - - - - -                           | 12112 |

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas an absolute majority of the whole number of the council at a meeting held on the twenty-seventh day of July nineteen hundred and nine after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Nottingham Daily Guardian a local newspaper published and circulating in the city such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas the said resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the third day of January nineteen hundred and ten being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerks of the peace for the county of Nottingham and for the county of the city of Nottingham respectively and are in this Act respectively



referred to as the deposited plans sections and books of A.D. 1910.  
reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

## PART I.

### PRELIMINARY.

1. This Act may be cited as the Nottingham Corporation Short title.  
Act 1910.

2. The following Acts and parts of Acts so far as they are Incorporation of Acts.  
applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with and form part of this Act (namely) :—

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) :

Section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870 Provided that section 19 shall in regard to its incorporation with this Act be read and have effect as if the words “but  
“ nothing in this Act contained shall authorise any local  
“ authority to place or run carriages upon such tramway  
“ and to demand and take tolls and charges in respect  
“ of the use of such carriages” were omitted from that section.

3. In this Act the several words and expressions to which Interpretation.  
meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts shall have the same respective meanings unless there be something in the subject or context repugnant to such construction. And in this Act unless the context otherwise requires—

The expressions “ the Corporation ” “ the city ” “ the council ” “ the town clerk ” “ the district fund ” “ the general district rate ” and “ the tribunal ” have the meanings assigned to them respectively by section 3 (Interpretation) of the Act of 1905 ;



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The expression "statutory security" has the meaning assigned to it by section 3 (Interpretation) of the Act of 1897;

"Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

"Revenues of the Corporation" includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation; and

"The Act of 1897" and "the Act of 1905" mean respectively the Nottingham Improvement Act 1897 and the Nottingham Corporation Act 1905.

## PART II.

### TRAMWAYS.

Power to  
make tram-  
ways.

4. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain the tramways (all within the city) herein-after described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates sleepers channels passages and tubes for ropes cables wires and electric lines junctions turntables turnouts crossings passing-places posts conduits boxes manholes stables carriage-houses engine and boiler houses sheds buildings engines dynamos batteries transforming stations works and conveniences connected therewith respectively.



The tramways referred to in this section and authorised A.D. 1910.  
by this Act are—

Tramway No. 1 (7 furlongs 2 chains in length whereof 6 furlongs 1·10 chains will be double line and 1 furlong 0·90 chain will be an interlacing line) situate in Carlton Road commencing by a junction with Tramway No. 6 authorised by the Act of 1905 at a point 30 feet or thereabouts measured in a south-westerly direction from the north-eastern side of North Street and terminating by a junction with Tramway No. 33A authorised by the Nottinghamshire and Derbyshire Tramways Act 1903 at a point 100 feet or thereabouts measured in a north-easterly direction from the eastern side of Thorneywood Lane:

Tramway No. 2 (double line 3·03 chains in length) situate in Nottingham Road commencing by a junction with an existing tramway at a point 128 feet or thereabouts measured in a north-westerly direction from the north-western side of Langtry Grove and terminating by a junction with an existing tramway at a point 62 feet or thereabouts measured in a south-easterly direction from the south-eastern side of Gladys Street:

Tramway No. 3 (double line 1 furlong 2 chains in length) commencing by a junction with an existing tramway in Lister Gate at a point 12 feet or thereabouts measured in a southerly direction from the northern side of Broad Marsh thence proceeding in a southerly direction along and terminating in Carrington Street by a junction with an existing tramway at a point 35 feet or thereabouts measured in a southerly direction from the south side of Canal Street:

Tramway No. 4 (double line 1 furlong 3·32 chains in length) commencing by a junction with an existing tramway in Lister Gate at a point 11 feet or thereabouts measured in a south-westerly direction from the northern side of Broad Marsh thence proceeding in a south-westerly direction along Greyfriar Gate and terminating in Canal Street by a junction with an existing tramway at a point 20 feet or thereabouts measured in a westerly direction from the eastern side of Finkhill Street:



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Tramway No. 5 (double line 1 furlong in length) commencing in Canal Street by a junction with an existing tramway at a point 20 feet or thereabouts measured in a westerly direction from the eastern side of Finkhill Street thence proceeding in an easterly direction along Canal Street and terminating in Carrington Street by a junction with an existing tramway at a point 35 feet or thereabouts measured in a southerly direction from the south side of Canal Street:

Tramway No. 6 (double line 2·25 chains in length) commencing in Greyfriar Gate by a junction with Tramway No. 4 at a point 7 feet or thereabouts measured in a south-westerly direction from the northern side of Albion Street thence proceeding in a south-easterly direction to and terminating in Canal Street by a junction with Tramway No. 5 at a point 46 feet or thereabouts measured in an easterly direction from the south-eastern side of Greyfriar Gate:

Provided that the said Tramways Nos. 3 4 and 6 shall not be completed in the part of a street the widening of which is authorised by this Act until the same has been widened.

Period for  
completion  
of works.

5. The tramways authorised by this Act shall be completed within seven years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Corporation for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Works to  
form part  
of tramway  
undertaking  
of Corpora-  
tion.

6.—(1) The tramways authorised by this Act and the works connected therewith shall for all purposes form part of the tramway undertaking of the Corporation and the provisions of the Acts herein-after mentioned and of the enactments incorporated therewith respectively and any byelaws and regulations made in pursuance thereof respectively so far as such provisions byelaws and regulations are not inconsistent with the provisions of this Act shall extend and apply to the said tramways and works as if they had formed part of the tramways and works authorised by the said Acts Provided that nothing contained in this section shall prevent any rescission revocation amendment or variation of the said byelaws and regulations.



(2) The Acts herein-before referred to are—

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The Nottingham Improvement Act 1897 ;  
The Nottingham Corporation Act 1899 ;  
The Nottingham Corporation Act 1900 ;  
The Nottingham Corporation Act 1902 ; and  
The Nottingham Corporation Act 1905.

7. The period limited by section 15 (Period for completion of works) of the Act of 1905 for the construction of such of the tramways authorised by that Act as have not been constructed is hereby extended until the expiration of seven years from the fourth day of August nineteen hundred and ten.

Extension of  
time for con-  
struction of  
tramways.

8. So much of the Nottinghamshire and Derbyshire Tramways Act 1903 the Nottinghamshire and Derbyshire Tramways Act 1906 and the Nottinghamshire and Derbyshire Tramways Act 1908 as authorised the construction of the part herein-after referred to of Tramway No. 33A described in section 5 of the said Act of 1903 or as otherwise relates to that part of that tramway is hereby repealed.

Repeal of  
Notting-  
hamshire and  
Derbyshire  
Tramway  
Acts as to  
part of Tram-  
way No. 33A.

The part of the said Tramway No. 33A herein-before referred to is situate between a point thirty feet or thereabouts measured in a south-westerly direction from the north-eastern side of North Street and a point one hundred feet or thereabouts measured in a north-easterly direction from the eastern side of Thorneywood Lane.

9.--(1) Notwithstanding anything contained in the enactments relating to the tramway undertaking of the Corporation the Corporation with the consent of the Board of Trade may—

Alteration of  
tramways.

(A) Make maintain alter and remove such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by the enactments relating to any of the tramways of the Corporation as they find necessary or convenient for the efficient working of those tramways or for forming junctions with other tramways or light railways or for providing access to any warehouses stables or carriage-houses or works of the Corporation ; and

(B) Lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing



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lines or interlacing lines in lieu of double or single lines on any of their tramways either when constructing the tramways or at any time thereafter and construct or take up and reconstruct any of their tramways in such position in the road in which it is authorised to be constructed as they may think fit.

(2) Provided that if in the construction of any works under this section any rail is intended to be laid nearer to the footpath than previously authorised in such a manner that a less space than nine feet six inches would intervene between such rail and the outside of the footpath on either side of the road the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not be so laid (except with the consent of the Board of Trade) if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

(3) Section 17 (Additional crossings &c. may be made where necessary) of the Nottingham Corporation Act 1899 is hereby repealed.

Restrictions  
not to apply  
to special  
carriages.

10. The restrictions contained in the enactments relating to the tramway undertaking of the Corporation as to fares for passengers shall not extend to any special carriages run upon the tramways of the Corporation or to any special service of carriages on extraordinary occasions in respect of which the Corporation may demand and take such fares as they shall think fit but shall apply only to the ordinary carriages or service of carriages appointed from time to time for the conveyance of passengers on the tramways of the Corporation Provided that the running of such carriages shall in no way curtail the ordinary service of carriages.

Use of tram-  
way posts by  
Postmaster-  
General.

11.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or



public road by the Corporation in connexion with the tramways authorised by this Act and by the Act of 1905 (in this section together referred to as "the tramways") and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

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- (A) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramways:
- (B) The Postmaster-General shall give to the Corporation not less than twenty-eight days' notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as herein-after provided:
- (c) Unless otherwise agreed between the Postmaster-General and the Corporation the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expense of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Corporation or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section:
- (d) Unless otherwise agreed or in case of difference determined as herein-after provided all telegraphs shall be attached to the posts standards or brackets below the



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level of the trolley wires and on the side of such posts or standards farthest from the trolley wires. Any difference as to the conditions of attachment shall be determined as herein-after provided:

- (E) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road:
- (F) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair:
- (G) The Postmaster-General shall make good to the Corporation and shall indemnify them against any loss damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Corporation their officers or servants:
- (H) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Corporation and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Corporation or failing agreement determined as herein-after provided:
- (I) The Corporation shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramways or by any accident arising thereon or by the authorised use by the Corporation of electrical energy unless such interference damage or



injury be caused by gross negligence on the part of the Corporation their officers or servants: A.D. 1910.

- (J) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days' notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Corporation the value of the same. Provided that if the Corporation or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as herein-after provided.

(2) Nothing in this section contained shall prevent the Corporation from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connexion with their tramways or other municipal undertakings or shall take away any existing right of the Corporation of permitting the use by any company or person of their posts standards or brackets in connexion with the lighting of the streets or otherwise. Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as herein-after provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section—

The expression "the Corporation" includes their lessees;

The expression "telegraph" has the same meaning as in the Telegraph Act 1869; and

Other expressions have the same meaning as in the Telegraph Act 1878.

12. Notwithstanding anything contained in this Act or shown on the deposited plans so much of Tramway No. 1 as will be situate in Carlton Road between the north-easterly side of Cardiff Street and a point fifty-three feet measured in a

As to tramway in Carlton Road.



A.D. 1910. — north-easterly direction from the north-easterly side of Granville Grove shall be laid as a single line or interlacing lines and in the construction of so much of the said tramway the causeway on the north side of Carlton Road between the above-mentioned points shall not be reduced in width and the space between the existing kerb on the said north side and the nearest rail of the tramway shall not be less than eight feet six inches.

For protection of  
Great Northern  
Railway  
Company.

**13.** The following provisions for the protection of the Great Northern Railway Company (herein-after called "the company") shall unless otherwise agreed between the Corporation and the company in writing under their common seals apply and have effect:—

- (1) Tramway No. 1 where it will be constructed on the bridge carrying Carlton Road over the Nottingham Suburban Railway (herein-after called "the bridge") or will otherwise affect such railway shall be constructed and maintained so as not to interfere with the structure of the bridge and in all things at the expense of the Corporation and to the reasonable satisfaction of the engineer of the company (herein-after called "the engineer") and according to plans sections and specifications to be previously approved by him or in case of difference between him and the engineer of the Corporation by an arbitrator to be appointed as herein-after provided. Before commencing any such works the Corporation shall give at least fourteen days' notice in writing to the company of their intention to execute the same. All such works shall be executed and thereafter maintained according to the plans sections and specifications so approved and to the reasonable satisfaction of the company:
- (2) The Corporation shall not in any manner in the execution maintenance or repair of any of their works under this Act obstruct hinder or interfere with the free uninterrupted and safe user of the said railway or any traffic thereon:
- (3) The Corporation shall pay to the company the reasonable expense of the employment by the company during the execution or repair of Tramway No. 1 of a sufficient number of inspectors watchmen and signalmen



reasonably required for watching and signalling the property of the company with reference to and during the execution or repair of such Tramway No. 1 and shall execute all such temporary works as the engineer may reasonably consider necessary for the purpose of avoiding risk to any railway or work belonging or leased to or worked by the company or to any traffic thereon: A.D. 1910.

(4) If by reason of the execution user or failure of any of the works aforesaid of the Corporation in respect of Tramway No. 1 or any act or omission of the Corporation or of their contractors or of any person in the employment of the Corporation or of their contractors or otherwise with respect to such tramway any railway or work belonging or leased to or worked by the company shall be injured or damaged such injury or damage shall be forthwith made good by the Corporation at their own expense or in the event of their failing so to do then the company may make good the same and the reasonable expenses thereof shall be repaid to the company by the Corporation and the Corporation shall indemnify the company against all losses which the company may sustain and shall pay all costs charges and expenses which the company may reasonably be put to or incur by reason of the execution user or failure of any of the works aforesaid of the Corporation or any act or omission of the Corporation or their contractors or any person in the employment of the Corporation or their contractors or otherwise with respect to Tramway No. 1:

(5) The Corporation shall at all times hereafter at their own expense repair and maintain the whole of the roadway and footways on the bridge and the approaches thereto:

(6) If owing to the construction or user of Tramway No. 1 it becomes necessary that the bridge should be strengthened or reconstructed then the company shall execute such strengthening or reconstruction as the case may be but in all things at the expense



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of the Corporation and according to plans sections and specifications to be approved by the engineer and the Corporation shall repay to the company all reasonable expenses which the company may incur in or in connexion with or arising out of the execution of any such strengthening or re-construction :

- (7) Any additional expense in the maintenance of the bridge reasonably incurred by the company by the construction or user of Tramway No. 1 shall be repaid by the Corporation to the company at the end of every year :
- (8) No stays posts wires or other appliances or apparatus to be used in connexion with electrical traction on Tramway No. 1 shall be attached or fastened to or be constructed so as to be in contact with the bridge or other works or property of the company except with the consent of the company and in accordance with plans sections and specifications to be approved by the engineer but except as to details such consent shall not be unreasonably withheld :
- (9) If having regard to the works of the Corporation where Tramway No. 1 will be constructed over the Nottingham Suburban Railway it shall be necessary that the electric telegraphic telephonic or signal wires or apparatus of the company should be altered the company may execute any works reasonably necessary for such alteration and the expense of executing such works and any reasonable additional expense incurred by the company in the maintenance of such wires or apparatus by reason of their being altered as aforesaid or in the laying or maintenance of new wires or apparatus at any such point as aforesaid by reason of the construction or user of the tramways shall be borne by the Corporation :
- (10) Whenever and so often as the company shall require to widen lengthen reconstruct alter strengthen or repair the bridge or the approaches thereto or to widen or alter the Nottingham Suburban Railway the Corporation shall afford the company all proper and reasonable facilities for those purposes or any of them :



- (11) In exercising the powers of the section of this Act. A.D. 1910.  
whereof the marginal note is "Alteration of tramways"  
the Corporation shall be subject to all conditions and  
restrictions for the protection of the company con-  
tained in the Acts or Orders authorising the tramway  
in connexion with which such powers shall be  
exercised :
- (12) Any question arising between the company and the  
Corporation with reference to this section shall be  
determined unless otherwise agreed by an arbitrator  
to be appointed by the Board of Trade on the  
application of either party.

### PART III.

#### STREET IMPROVEMENTS.

14. Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the following street improvements with all proper works and conveniences connected therewith or incident thereto and may enter upon take and use such of the lands delineated upon the deposited plans and described in the deposited books of reference as they may require for those purposes or for the purpose of providing space for the erection of buildings adjoining or near to any such improvement:—

Power to make street improvements.

Street Improvement No. 1.—A widening of Carrington Street on both sides thereof commencing at its junction with Broad Marsh and terminating at its junction with Canal Street :

Street Improvement No. 2.—A widening of Greyfriar Gate on the south-eastern side commencing at its junction with Carrington Street and terminating at its junction with Canal Street.

15. The powers of the Corporation for the compulsory purchase of the lands authorised by this Act to be taken shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

16. The following sections of the Act of 1897 and of the Act of 1905 are incorporated with this Act and shall extend

Incorporation of sections from



A.D. 1910. and apply in regard to the street improvements and lands  
Acts of 1897 authorised to be executed and taken under this Act as if those  
and 1905. sections with the necessary modifications were set out in this  
Act (namely):—

Act of 1897—

Section 6 Correction of errors &c. in deposited plans and  
book of reference;

Section 8 Persons under disability may grant easements  
&c.;

Section 12 Power to retain sell &c. lands;

Section 13 Proceeds of sale of surplus lands;

Section 21 Power to make subsidiary works;

Section 23 Temporary stoppage of streets;

Act of 1905—

Section 27 Limits of deviation; and

Section 39 Owners may be required to sell parts only of  
certain lands and buildings:

Provided that in the application of the said section 39 that  
section shall be read and have effect as if the property described  
in the First Schedule to this Act were therein referred to instead  
of the properties mentioned in subsection (1) of the said section.

Provisions  
as to com-  
pensation.

17. For the purpose of determining any question of dis-  
puted purchase money or compensation payable in respect of  
lands taken in pursuance of this Act the following provisions  
shall apply and for the purposes of this section the expression  
“owner” shall mean the owner of and persons interested in the  
lands required by the Corporation:—

(1) The tribunal shall take into account any permanent  
increase in value of any lands retained by or belonging  
to the owner which in the opinion of the tribunal  
will result from or be caused by the construction of  
the works for or in connexion with which the lands  
are required and generally all the other circumstances  
of the case which it is equitable to consider:

(2) The tribunal shall not award any sum of money for or  
in respect of any improvement alteration or building  
made or erected or for or in respect of any interest  
in the land created after the first day of January nine-  
teen hundred and ten if in the opinion of the tribunal



the improvement alteration or building or the crea- A.D. 1910.  
tion of the interest in respect of which the claim is  
made was not reasonably necessary and was made  
erected or created with a view to obtaining or  
increasing compensation under this Act.

**18.**—(1) The tribunal to whom any question of disputed Costs of  
purchase money or compensation under this Act is referred shall arbitration  
if so required by the Corporation award and declare whether under Lands  
a statement in writing of the amount of compensation claimed Clauses  
has been delivered to the Corporation by the claimant giving Acts.  
sufficient particulars and in sufficient time to enable the  
Corporation to make a proper offer and if the tribunal shall be  
of opinion that no such statement giving sufficient particulars  
and in sufficient time shall have been delivered and that the  
Corporation has been prejudiced thereby the tribunal shall have  
power to decide whether the claimant's costs or any part  
thereof shall be borne by the claimant.

(2) Provided that it shall be lawful for any judge of the  
High Court to permit any claimant after seven days' notice to  
the Corporation to amend the statement in writing of the claim  
delivered by him to the Corporation in case of discovery of  
any error or mistake therein or for any other reasonable cause  
such error mistake or cause, to be established to the satisfaction  
of the judge after hearing the Corporation if they object to  
the amendment and such amendment shall be subject to such  
terms enabling the Corporation to investigate the amended  
claim and to make an offer de novo and as to postponing the  
hearing of the claim and as to costs of the inquiry and  
otherwise as to such judge may seem just and proper under  
all the circumstances of the case.

(3) Provided also that this section shall be applicable only  
in cases where the notice to treat under the Lands Clauses  
Consolidation Act 1845 either contained or was endorsed with a  
notice of the effect of this section.

**19.** The Corporation in addition to the lands which they Power to  
are by this Act authorised to acquire may by agreement purchase  
purchase take on lease acquire and hold for the purposes of this additional  
Act any additional lands not exceeding in the whole three acres lands by  
Provided that the Corporation shall not create or permit the agreement.  
creation or continuance of any nuisance on any such additional  
lands.



A.D. 1910.  
Closing of  
Melville  
Street.

**20.** As from the completion of Street Improvement No. 2 authorised by this Act the Corporation may stop up that part of Melville Street which will lie between Greyfriar Gate as widened and Collin Street and thereupon all public rights of way over that part of the street shall be extinguished and on the stopping up of that part of the street the site and soil thereof shall vest in the owners of the lands abutting thereon.

#### PART IV.

##### FINANCIAL AND MISCELLANEOUS.

Power to  
borrow.

**21.**—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all money so borrowed within the respective periods (each of which shall be “the prescribed period” for the purposes of the enactments incorporated herewith) mentioned in the third column of the said table (namely):—

| 1                                                                                                               | 2                  | 3                                                 |
|-----------------------------------------------------------------------------------------------------------------|--------------------|---------------------------------------------------|
| Purpose.                                                                                                        | Amount.            | Period for Repayment.                             |
| (A) For and in connexion with the construction of the tramways authorised by this Act.                          | £<br>24000         | Thirty years from the date or dates of borrowing. |
| (B) For the electrical equipment of the tramways authorised by this Act and for the provision of rolling stock. | 9250               | Twenty years from the date or dates of borrowing. |
| (C) For and in connexion with the purchase of land for the street improvements authorised by this Act.          | 28638              | Sixty years from the date or dates of borrowing.  |
| (D) For and in connexion with the construction of the said street improvements.                                 | 12112              | Thirty years from the date or dates of borrowing. |
| (E) For paying the costs charges and expenses of this Act as herein-after provided.                             | The sum requisite. | Five years from the passing of this Act.          |

(2) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for any of the purposes of the tramway undertaking of the Corporation and may with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act other than purposes of that undertaking.



Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Board with whose consent it is borrowed and that period shall be "the prescribed period" for the purposes of the enactments incorporated herewith. A.D. 1910.

(3) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge—

As regards money borrowed for the purposes (A) (B) and (E) and any other money borrowed for the purposes of the tramway undertaking of the Corporation the revenue of that undertaking and the district fund and general district rate or either of those securities;

As regards money borrowed for any other purposes the district fund and general district rate:

Provided that the provisions of this subsection shall not limit the powers conferred upon the Corporation by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

**22.** The following sections of the Act of 1897 and of the Act of 1905 are incorporated with this Act and shall extend and apply to and for the purposes of this Act as if those sections with the necessary modifications were set out in this Act (namely):—

Incorporation of further provisions from Acts of 1897 and 1905.

Act of 1897—

Section 25 Certain regulations of Public Health Act as to borrowing not to apply;

Section 26 Mode of raising money;

Section 27 Provisions of Public Health Act as to mortgages to apply;

Section 29 Mode of payment off of money borrowed;

Section 30 Sinking fund;

Section 31 Protection of lender from inquiry;

Section 32 Corporation not to regard trusts;

Section 33 Appointment of receiver;

Section 35 Annual return to Local Government Board;

Section 36 Application of money borrowed;

Section 37 Inquiries by Local Government Board;



A.D. 1910.

Act of 1905—

Section 46 Expenses of execution of Act;

Section 62 Recovery of penalties;

Section 63 Judges not disqualified; and

Section 64 Audit of accounts.

Power to  
re-borrow.

**23.**—(1) The Corporation shall have power—

(A) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Section 34 (Power to re-borrow) of the Act of 1897 section 38 of the Nottingham Corporation Water Act 1897 and



so much of the following sections of the Acts herein-after mentioned as applies the said section 34 to the purposes of those Acts are hereby repealed but without prejudice to anything done or suffered to be done thereunder (namely):—

A.D. 1910.

Nottingham Corporation Act 1898 section 6;  
Nottingham Corporation Act 1899 section 47;  
Nottingham Corporation Act 1900 section 13;  
Nottingham Corporation Act 1902 section 34;  
Nottingham Corporation Act 1905 section 42;  
Nottinghamshire and Derbyshire Tramways Act 1908 section 25.

**24.** When under the provisions of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund for the payment off of money borrowed or payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities.

Power to invest all sinking funds in statutory securities.

**25.**—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

Power to use one form of mortgage for all purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Second Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation whether so chargeable or not under the original borrowing powers.



A.D. 1910.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section and the interest upon such sums shall be paid out of the funds rates or revenues out of which such interest would have been payable respectively if this section had not been enacted.

(7) There shall be kept at the office of the town clerk a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Second Schedule to this Act or to the like effect.

(9) There shall be kept at the office of the town clerk a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.



(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby. A.D. 1910.

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

**26.** Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein. Application of section 265 of Public Health Act 1875.

**27.** All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence. Powers of Act cumulative.

**28.** All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the district fund and general district rate or out of moneys to be borrowed under this Act for that purpose. Costs of Act.



A.D. 1910.     The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

PREMISES OF WHICH PARTS ONLY ARE REQUIRED.

| City.                | Number on deposited Plans. |
|----------------------|----------------------------|
| Nottingham - - - - - | 74                         |

THE SECOND SCHEDULE.

FORM OF MORTGAGE.

By virtue of the Nottingham Corporation Act 1910 and of other their powers in that behalf them enabling the mayor aldermen and citizens of the city of Nottingham and county of the same city (herein-after referred to as "the Corporation") in consideration of the sum of \_\_\_\_\_ pounds paid to the treasurer of the city by \_\_\_\_\_ (herein-after referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the said sum so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of \_\_\_\_\_ pounds shall be fully paid and satisfied with interest for the same (subject as herein-after provided) at the rate of \_\_\_\_\_ per centum per annum from the \_\_\_\_\_ day of \_\_\_\_\_ one thousand nine hundred and \_\_\_\_\_ until payment of the said principal sum such interest to be paid half-yearly on the \_\_\_\_\_ day of \_\_\_\_\_ and the \_\_\_\_\_ day of \_\_\_\_\_ in each year And it is hereby agreed that the said principal sum of \_\_\_\_\_ pounds shall be repaid at the Guildhall in the said city (subject as herein-after provided) [on the \_\_\_\_\_ day of \_\_\_\_\_ one thousand nine hundred and \_\_\_\_\_] [by \_\_\_\_\_] [at the expiration of six calendar months from the giving by the mortgagee of written notice addressed



to the town clerk at the Guildhall Nottingham requiring payment of the said principal sum but such notice shall not be given before the                      day of                      and the Corporation may pay off the same sum at any time after the said date on giving a like notice]:

A.D. 1910.

Provided always and it is hereby agreed and declared that the before-mentioned time [before which notice cannot be given] for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon and mentioned and specified in an endorsement to be made hereon under the hand of the mayor and town clerk of the city for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this                      day  
of                      one thousand nine hundred and                      .

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named                      consenting the within-mentioned time [before which notice cannot be given] for repayment of the within-mentioned principal sum of                      is hereby extended to the                      day of                      one thousand nine hundred and                      [and the interest to be paid thereon on and from the                      day of                      one thousand nine hundred and                      is hereby declared to be at the rate of                      per centum per annum].

Dated this                      day of                      one thousand nine hundred and                      .

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FORM OF TRANSFER OF MORTGAGE.

I [the within named]                      [of                      ] in consideration of the sum of                      pounds paid to me by                      of                      (herein-after referred to as "the transferee") do hereby transfer to the transferee [his] executors administrators and assigns [the within-written



A.D. 1910. security] [the mortgage number of the revenues of the  
— mayor aldermen and citizens of the city of Nottingham bearing date  
the day of ] and all my right and  
interest under the same subject to the several conditions on which I  
hold the same at the time of the execution hereof and I the transferee  
for myself my executors administrators and assigns do hereby agree to  
take the said mortgage security subject to the same conditions.

Dated this day of one thousand  
nine hundred and

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